SUPERIOR COURT OF THE STATE OF CALIFORNIA — COUNTY OF ALAMEDA

BRENDAN NGEHSI NEWANFORBI, Petitioner, v. CALIFORNIA HIGHWAY PATROL; G. SERRATO, in his official capacity, Respondents.

Case No. **26CV191136** | Hon. **Jenna M. Whitman** | Department **25**

PETITIONER'S REVISED NOTICE OF MOTION AND MOTION FOR ISSUANCE OF PEREMPTORY WRIT OF MANDATE; MEMORANDUM OF POINTS AND AUTHORITIES

Code Civ. Proc., §§ 1085, 1086, 1088, 1088.5, 1090, 1094; Pen. Code, § 679.10

Hearing: January 8, 2027, 9:00 a.m. **(RESERVED—not independently confirmed as the court-ordered merits setting)** | **Reservation ID:** 958052306492 | Dept. 25, René C. Davidson Courthouse, 1225 Fallon Street, Oakland, CA. **[Confirm setting following Oct. 28, 2026 CMC before filing.]**

Petitioner in propria persona: **Brendan Ngwa Nforbi**, appearing under the existing filed caption. **[Insert current service address, telephone and email exactly as on current court notice; resolve any name-caption requirement.]**

REVISED WORKING DRAFT — NOT FILED OR SERVED. Original video, original signed denial, filed Answer, court case-management order, declaration statements and notice/service deadline must be verified before submission.

NOTICE OF MOTION AND MOTION

TO RESPONDENTS AND THEIR ATTORNEYS OF RECORD:

PLEASE TAKE NOTICE that on the hearing date and at the location stated above, if confirmed by the Court, Petitioner will move under Code of Civil Procedure section 1085 for judgment on the **sole surviving First Cause of Action** and issuance of a peremptory writ of mandate enforcing the conditional duties of Penal Code section 679.10 in connection with CHP's **April 20, 2026 denial** of Petitioner's **April 9, 2026** request for Form I-918, Supplement B certification. Petitioner alternatively requests that the Court direct the appropriate narrowly tailored procedure for determination of an essential disputed factual issue rather than decide the merits on an incomplete or procedurally improper record. (Code Civ. Proc., §§ 1088.5, 1090, 1094.)

Petitioner requests: (1) a finding that CHP's determination that the reported incident involved no qualifying criminal activity cannot lawfully stand on the evidence and applicable standard; (2) an order setting aside that denial; and (3) **primarily**, a writ compelling an authorized CHP official to complete, sign, and deliver the certification **if** the Court finds qualifying victimhood, helpfulness, and the absence of any legally permissible alternative established. **Alternatively**, if a particular legal error or abuse of discretion is proved but permissible factfinding or discretion remains, Petitioner seeks a writ vacating the April 20 decision and requiring new consideration under the correct law and the Court's findings, on a specified timetable and with a return to the writ. Petitioner seeks no damages or adjudication of any dismissed cause of action.

This motion is based on this Notice, the Memorandum below, Petitioner's verified petition with Exhibits 1–7, the August 29, 2026 demurrer order, the October 12 verified Answer insofar as authenticated and cited, the documents Bates-stamped AGO 000029–000053 and other properly admitted CHP production, the original November 1, 2024 recording and authenticated timestamped transcript, Petitioner's concurrently served declaration, the case record, and argument received by the Court. The proposed order and writ shall be separately lodged and served. **[Attach original Alameda reservation receipt and complete proof of service after verification.]**

MEMORANDUM OF POINTS AND AUTHORITIES

I. THIS CASE CHALLENGES SERRATO'S APRIL 20 DECISION, NOT AN INDEPENDENT CLAIM FOR DAMAGES ARISING FROM THE DUI INVESTIGATION

The challenged administrative act is Captain G. Serrato's April 20, 2026 rejection of a certification request that specifically identified **false imprisonment and unlawful criminal restraint** by CHP personnel. The statutory issue is whether that rejection was a lawful application of Penal Code section 679.10(c), (d), (g) and (h), or an abuse of discretion correctable under Code of Civil Procedure section 1085. What the officers did on November 1, 2024 matters here as evidence of the **qualifying-criminal-activity determination**, not as an invitation to adjudicate six collateral Fourth Amendment claims.

In overruling the demurrer to the First Cause of Action, this Court recognized that a credible evidentiary showing undermining the officers' asserted intoxication observations could support the conclusion that the detention lacked probable cause and that the certification denial was abusive. (Order Sustaining Demurrer In Part, Aug. 29, 2026, at p. 4.) **That pleading ruling did not establish the facts.** This motion asks for the resulting merits determination on the competent record. Counts Two and Three were dismissed without leave, and Count Four was not amended within the allowed period. The motion neither revives a standalone detailed-explanation duty nor seeks separate relief for helpfulness untethered to Count One.

The statutory inquiry is bounded, yet decisive: Was Petitioner the victim of **qualifying criminal restraint**, and has he helped or been willing to help in its detection or investigation? If the Court resolves those predicates in Petitioner's favor, subdivision (g)(1) states the consequence in mandatory terms. If the Court finds legal error but remaining discretion, the remedy is correction of the agency decision, not substitution of an unsupported judicial certification.

II. THE AGENCY DECISION AND MATERIALS IT WAS ASKED TO REVIEW

April 9–20 is the controlling decision period. On April 9, Petitioner submitted a completed certification request supported by a memorandum identifying the alleged criminal conduct and by specific incident evidence, including the CHP arrest report, timestamped dashcam transcript and section 851.6 detention certificate. (Verified Pet., Exs. 2–7; Petitioner Decl. ¶¶ 7–9.) Lieutenant Paul acknowledged receipt on April 10 as under review. On April 20, Serrato signed CHP's rejection. (Pet., Ex. 1.) This was **timely** under the ordinary 30-day processing rule; Petitioner alleges no delay violation. What matters is the **legal validity** of the threshold finding.

The decision letter, as reproduced in the filed federal pleading and **subject to comparison with the original signed Petition Exhibit 1**, states in relevant part: **“A thorough review of this incident was conducted”;** the incident **“does not meet the standard of qualifying criminal activity identified in Section 679.10”** or the cited federal standard; and the review found **“no substantially similar qualifying criminal activity”** under subdivision (d). It therefore denied certification. (Pet., Ex. 1 [original text to be checked verbatim before filing].) The decision **identifies** the qualifying-activity ground; it does **not** assert that Petitioner refused to assist, had a

disqualifying record, or needed a prosecution or conviction. The lawfulness of that identified ground—not the five-sentence format—is the issue.

The transmitted request gave CHP more than a bare allegation: it identified recorded events by time, compared statements in CHP's own report, and supplied the agency's detention certificate. The Court should evaluate the actual decision against those presented allegations and competent contemporaneous proof. Petitioner does not claim that a short letter proves no review occurred; the extent of review is a separate evidentiary question to be answered by the contemporaneous April file, including any nonprivileged intake or review records properly obtained through Request for Production No. 8. **[Before filing: insert exact Bates/document citation for any produced April decision-file evidence; otherwise do not claim contents not obtained.]**

III. THE GOVERNING STATUTE IMPOSES A CONDITIONAL, ENFORCEABLE CERTIFICATION DUTY

CHP is a law enforcement **certifying entity**, and Serrato issued the decision for that entity. (Pen. Code, § 679.10, subds. (a)–(b); Pet., Ex. 1.) Penal Code section 679.10(c) expressly lists **"[u]nlawful criminal restraint"** and **"[f]alse imprisonment"** as qualifying criminal activity; subdivision (d) includes crimes whose nature and elements are substantially similar to listed criminal activity. Most importantly, subdivision (g)(1) provides that, upon request, an authorized official **"shall certify victim helpfulness"** when the person was the victim of qualifying criminal activity and **"has been helpful, is being helpful, or is likely to be helpful"** in detection, investigation or prosecution of it.

The statute does not require the victim to procure a criminal complaint, officer arrest, conviction or open investigation. (Pen. Code, § 679.10, subd. (k)(1).) The statutory victim is also not rendered ineligible merely because the person was investigated as a potential suspect in **another** offense. The statute protects against specified impermissible grounds, including use of the victim's criminal history or cooperation in a separate case; Petitioner does **not** assert that Serrato actually employed those prohibited factors absent proof. (Id., subd. (k)(3)(A), (H).)

Subdivision (h) creates a **rebuttable presumption of helpfulness** where the victim did not refuse or fail to provide reasonably requested assistance. It does **not** eliminate the qualifying-activity element. Certification, moreover, is evidence for federal immigration proceedings, not a

grant of immigration status. The Legislature placed the certification decision with defined officials but bounded it by the mandatory conditions it enacted.

Traditional mandate corrects a public official's legally erroneous exercise of duty or abuse of discretion; it ordinarily cannot dictate a discretionary judgment unless one lawful result remains. (Code Civ. Proc., §§ 1085–1086; *Saleeby v. State Bar* (1985) 39 Cal.3d 547, 562; *Common Cause v. Board of Supervisors* (1989) 49 Cal.3d 432, 442–446.) These principles govern both the requested certification and the alternative request for remand.

IV. THE REQUEST PRESENTED THE ELEMENTS OF A QUALIFYING RESTRAINT OFFENSE; CHP'S "NO QUALIFYING ACTIVITY" CONCLUSION MUST BE TESTED AGAINST THE ACTUAL AUTHORITY FOR CONFINEMENT

The offense is unlawful restraint of a person. Penal Code section 236 defines false imprisonment as the unlawful violation of another's personal liberty. Penal Code section 146(a) additionally proscribes a public officer's arrest or detention against a person's will under color of authority **without lawful authority**. Petitioner does not claim that section 146(a) automatically qualifies by name under subdivision (c); it supplies a closely related state criminal-law description of an **unlawful detention by an officer** whose nature and elements must be considered under subdivision (d), while section 236 directly matches the listed offense. Whether every criminal element and absence of legal privilege is established is the factual dispute—not a reason to categorically treat a law enforcement detention as incapable of qualifying.

Intentional restraint is not disputed. CHP's own Form 202 records handcuffing, custody, transport, a warrant-authorized blood draw, and jail booking arising from the November 1 incident. (Pet., Ex. 6; AGO 000029, 000032–000033.) The material question is **lawful privilege** at the point the custody became compulsory. The officers did not witness the Tesla moving and the DS-367 treats driving as admitted rather than observed. (CHP Form 202/DS-367, AGO 000029–000053 [exact DS-367 Bates to insert]; Verified Answer ¶34 [verify filed text].) Under Vehicle Code section 40300.5, arrest without witnessed driving requires both reasonable cause to believe prior DUI and one of the statute's specified circumstances; the officers observed the car on a **right shoulder**, not necessarily obstructing a traveled roadway. The Court must determine the relevant statutory circumstance on the evidence actually available when arrest occurred, not

treat the absence of observed movement as dispositive or ignore available alternatives under subsections (c)–(e).

The record contains an affirmative discrepancy in a purported arrest factor. CHP Form 202 records that Petitioner **chose not to perform** the walk-and-turn because of difficulty. (Pet., Ex. 6; AGO 000031.) Yet at 01:10:23 Petitioner told officers he thought he could attempt that test; at 01:10:25–30 Melano objected to the freeway shoulder's **uneven ground** and told Meza-Gonzalez he would not perform that test there; Meza-Gonzalez agreed. (Pet., Ex. 5, timestamped transcript at p. 11.) If the **native** video authenticates that exchange, the test's absence cannot fairly be attributed exclusively to Petitioner's refusal or inability. That matters because Form 202 invokes field-test performance as an actual factor in the arrest decision. It is a narrow, testable issue of factual reliability, not a demand that the Court assume every other observation was false.

Other distinctions likewise bear on the accuracy of the finding: the recording contains the officer's 00:56:09 provisional remark **"I think it's booze,"** while the cup later handled in the car was identified by Melano as **urine** at 00:58:51–59. A **separate empty alcoholic-beverage can** was subsequently produced; Petitioner denied drinking from it. (Pet., Ex. 5, pp. 2–5, 00:56:09, 00:58:51–01:00:09; Answer ¶47 [verify].) The officers' report attributed alcohol odor, red/watery eyes, slurred speech, HGN signs and a Modified Romberg estimate substantially different from elapsed time. The Answer reportedly admits the officers did not verbally identify odor or slurring during the recording and that Petitioner recognized his location; it does **not** admit there was no actual smell, no observed HGN signs, or unimpaired speech throughout. (AGO 000030–000032; Answer ¶¶37, 44–45 [verify].) The Court can compare specific, audible behavior against specific report descriptions without treating absence of verbal narration as the absence of a sensory fact.

The **voluntary** preliminary alcohol screening sequence is similarly discrete. Meza-Gonzalez stated the roadside PAS was optional, Petitioner declined at approximately **01:11:15**, and the officer instructed him to turn around for handcuffing approximately one second later. (Pet., Ex. 5, p. 12.) The refusal is not an affirmative chemical measurement or an independent element of a completed DUI; the Court must examine the objective evidence already available to support compulsory custody, without assuming timing alone proves the arrest lacked cause. An alcohol

test taken at **02:38** measured **0.073 ± 0.004 g%**, below the 0.08 per se threshold **at collection**, although it neither conclusively establishes the earlier concentration nor disposes of the §23152(a) impairment theory. (AGO 000029–000053 [specific lab Bates to insert].)

Petitioner recognizes that CHP can point to the freeway location, acknowledged earlier driving from an Oakland gathering, its asserted odor, eye and HGN observations, the Modified Romberg discrepancy, and the empty can. That evidence must be evaluated in the same totality as the recorded contrary observations and officer account of unsafe testing terrain. Nothing in the statute transforms **mere reasonable disagreement** with police observations into a qualifying criminal offense; the court's finding must be that the specific restraint **lacked lawful authority** under the properly established facts.

The initial door opening is corroborative, not a separate writ cause. The contemporaneous transcript records that knocking awakened Petitioner; Melano said **"Open the window"** at 00:56:40 and opened the passenger door at 00:56:43 before Petitioner could comply, without consent. The transcript next records a rear-door search around 00:59:46, before the recorded 01:11:42 dispatch report of parole status. (Pet., Ex. 5, pp. 2, 5, 12; Petitioner Decl. ¶¶3–5.) Petitioner states he did not disclose parole status earlier. He does not claim that the first **recorded** radio report conclusively proves no officer had prior private database knowledge. Nor does a potentially unlawful vehicle entry automatically establish **criminal false imprisonment**. The sequence matters only insofar as it identifies the first compulsory acts, the officer's changing investigative grounds, and what facts were lawfully available **before** each step.

The later section 851.6 certificate identifies custody as a detention rather than an arrest for specified record purposes; lack of filed DUI charges is undisputed on the available Answer. (Pet., Ex. 7; Answer ¶¶42, 49 [verify].) Neither is an individualized adjudication of probable cause or officer guilt. Their proper role is to contextualize, not replace, the judicial assessment of allegedly unlawful restraint under section 236 and the correct certification standard.

V. SERRATO'S REJECTION OF BOTH LISTED AND SUBSTANTIALLY SIMILAR ACTIVITY REQUIRES A SUBSTANTIVELY LAWFUL BASIS

The decision's determinative sentences deny **listed qualifying activity** and **substantially similar activity**. Because section 679.10(c)(18)–(19) expressly identifies criminal restraint and false

imprisonment, a rejection can stand only if it represents a legally permissible assessment that the claimed underlying conduct fails the elements of qualifying victimhood on a supported record—not a proposition that police detention, an absence of prosecution, or CHP's unilateral characterization of the encounter necessarily excludes such victimhood. The latter propositions would conflict with subdivisions (c), (d) and (k). **The current letter does not expressly endorse those incorrect propositions, and Petitioner does not pretend that it does.**

The demonstrable question is the **factual and legal basis** of CHP's actual finding. On April 9 the agency was presented with the same report and timestamped transcript identifying disputed descriptions of impairment and claimed restraint; on April 20 it stated categorically there was no qualifying or similar activity. Petitioner submits that, **if** the Court credits the evidence that the arrest lacked lawful authority and that the resulting custody constituted criminal false imprisonment, the denial's dispositive premise cannot stand. In that event, it is no answer that the officer was acting during an ostensible DUI investigation: state law explicitly recognizes detention **without lawful authority** as criminal misconduct under section 146(a), and section 236 recognizes unlawful confinement.

The alternative agency-error route is narrower and evidence-dependent. If a contemporaneous review file reveals that CHP treated absence of a filed criminal case as determinative; categorically excluded criminal misconduct by peace officers; assessed only whether the officers *asserted* DUI probable cause rather than evaluating contradictory evidence bearing on it; or employed another legally impermissible rule, the denial must be reconsidered under the correct statutory standard. **This motion does not claim any such specific internal criterion was used before the relevant April records establish it.** The later May 9, 2026 internal review/interview memoranda postdate the denial and are not evidence of what Serrato actually reviewed before April 20.

Under traditional mandate the Court need not infer deception, animus, or sham solely from a five-sentence decision. The proposed finding instead is either **(1) a substantively untenable qualifying-activity ruling after the Court finds the necessary facts**, or **(2) an actual, established misapplication of the governing law or demonstrable abuse of discretion**, resulting in a writ tailored to the finding. This is the claim that survived demurrer.

VI. PETITIONER SATISFIED, OR AT LEAST TRIGGERED THE REBUTTABLE PRESUMPTION ON, HELPFULNESS RELATED TO THE ALLEGED OFFICER CRIME

Petitioner's reported assistance concerns **the alleged criminal misconduct against him**, not his willingness to provide incriminating DUI evidence to the officers. He submitted a citizen complaint and a POST complaint, identified the officers and incident, preserved and supplied a timestamped account, and provided CHP with its own records and claimed contradictions. (Verified Pet., Exs. 2–3; Petitioner Decl. ¶¶8–10 [subject to truthful execution].) He maintains his willingness to answer any reasonably requested questions about that misconduct. The April 20 rejection asserted only a **qualifying-activity** defect; it did not find that Petitioner refused requested assistance relevant to an investigation of false imprisonment. (Pet., Ex. 1.)

Subdivision (h) presumes helpfulness if the qualifying victim has not refused or failed to provide reasonably requested information and assistance. Although the Answer reportedly disputes whether an investigating entity made any such request, the presumption is **not** a requirement that officers first open a prosecution or solicit an interview before a crime victim can qualify as *likely to be helpful*. (Pen. Code, § 679.10, subds. (g)(1), (h), (k)(1).) Petitioner does not allege that the presumption supplies missing proof of qualifying **victimhood**; it bears on the second statutory predicate, which must be decided separately.

VII. JUDGMENT AND ALTERNATIVE WRIT RELIEF FOLLOW THE FINDINGS THE COURT ACTUALLY MAKES

Petitioner principally asks the Court to find on competent evidence that the November 1 confinement constituted qualifying false imprisonment/unlawful criminal restraint, that the relevant helpfulness standard is met, and that **no lawful evaluative alternative** remains; under those findings, the Court should vacate April 20 and direct an authorized certifying official to execute and provide Form I-918 Supplement B within **30 calendar days after service of the writ** as a judicially prescribed compliance period. (Pen. Code, § 679.10(g)(1); *Common Cause*, supra, 49 Cal.3d at pp. 442–446.)

If the Court instead finds an **actual legal-standard error or abuse** but properly concludes that CHP retains discretion as to some disputed element, Petitioner alternatively requests an order setting aside the refusal and directing a **new decision** within 30 days that applies the Court's

identified legal standard and material factual findings, without conditioning certification on charges, prosecution or other forbidden grounds; CHP should file a **return** on the writ within 45 days after service. Such relief corrects an established legal wrong without improperly substituting judicial discretion. (*Saleeby*, supra, 39 Cal.3d at p. 562.)

If a genuinely material fact must be resolved by a hearing, Petitioner asks the Court to specify that fact and set the appropriate shortest lawful evidentiary procedure under Code of Civil Procedure section 1090. The noticed-motion route under section 1094 depends on the actual absence of a triable issue or a decision resting solely on the administrative record; a reserved date cannot waive that statutory condition. Petitioner seeks no advisory ruling, premature signature, or damages award.

VIII. CONCLUSION

Petitioner respectfully requests judgment on Count One; an evidentiary and legal finding on CHP's **April 20 determination** under Penal Code section 679.10; and, upon the findings described above, a peremptory writ principally directing certification or alternatively directing vacatur and lawful reconsideration. If the Court cannot properly resolve an essential fact on submitted papers, Petitioner requests a limited hearing on that issue rather than judgment on an incompletely tested record.

DATED: **[DATE OF FILING]**

/s/ Brendan Ngwa Nforbi

BRENDAN NGWA NFORBI (the person named in the filed caption as Brendan Ngehsi Newanforbi)

Petitioner, In Pro Per